

2008 SCC OnLine All 2573

In the High Court of Allahabad
 (BEFORE JANARDAN SAHAI AND S.P. MEHROTRA, JJ.)

Awadhesh Kumar Yadav

Versus

State Of U.P. and Others

Writ - C No. 16947 of 2008

Decided on April 15, 2008

JUDGMENT

The petitioner was given an electric connection in respect of tube well. The petitioner is aggrieved by the bill of electricity dated 15.2.08 for a sum of Rs. 1,11,966/-. Counsel for the petitioner submitted that in the year 2000 the transformer through which the petitioner was connected was removed and the petitioner ceased to get any electricity supply and therefore the bill raised against the petitioner is wholly illegal. Counsel for the petitioner relied upon the averments made in para 22 of the writ petition in which it has been alleged that the petitioner deposited a sum of Rs. 13,000/- on 10.10.2000 vide receipt no. 112748/32 but the electricity was not restored.

Sri H.P. Dubey on instructions having been received from the Power Corporation states that the supply of the petitioner was not disconnected but only the transformer was shifted to another place and that the dues shown in the bill are correct but the electricity has been disconnected on account of non payment of bill on 7.2.08. He also states that the petitioner is already pursuing the matter before the District Consumer Forum, Agra. He also submits that the petitioner has a remedy of approaching the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. In view of the alternative remedy available it is not a fit case for interference under Article 226 of the Constitution of India. In the circumstances as the dispute raised in this petition is factual one, it is appropriate that the petitioner may avail the remedy either before the District Consumer Forum or before the Executive Engineer. If the petitioner files objection before the Executive Engineer the same shall be disposed of by him expeditiously. The writ petition is accordingly disposed of.

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